SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Arbitration Petition No. 38 of 2020 **CNR: SCIN010000382020**

Date: 06 December, 2023 *Citation: (2024) 4 SCC 1*

CORAM: Hon'ble D.Y. Chandrachud, C.J., Hrishikesh Roy, P.S. Narasimha, J.B. Pardiw

Petitioner: Cox and Kings Ltd.

- VERSUS -

Respondent: SAP India Pvt. Ltd. & Another

DOMAIN: COMMERCIAL ARBITRATION JURISPRUDENCE **STATUS: Good Law (5-Judge Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

The Group of Companies doctrine is an integral part of Indian arbitration jurisprudence. The court or arbitral tribunal must examine cumulative factors: mutual intention, direct relationship to the signatory, commonality of subject matter, and composite transaction.

STATUTES APPLIED: Section 7, Section 8, Section 9, Section 11(6)

DISPOSITION: GROUP OF COMPANIES DOCTRINE AFFIRMED AND REFINED

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench upheld the Group of Companies Doctrine, holding that a non-signatory affiliate company can be bound by an arbitration agreement if the common intention of all parties was to bind both signatories and non-signatories.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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